

An Act

ENROLLED HOUSE
BILL NO. 4226

By: Kannady of the House

and

Gollihare of the Senate

An Act relating to courts; amending 20 O.S. 2021, Section 1403, which relates to the disqualification of judges; permitting parties to request disqualification of judges under certain circumstances; allowing for the filing of motions; directing judges to rule on motions within fifteen days; allowing for the review of disqualification motions by the chief judge of the county; directing presiding judge of administrative district to review motion for disqualification of chief judge; providing procedure for rehearing; allowing application for mandamus; and providing an effective date.

SUBJECT: Courts

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 20 O.S. 2021, Section 1403, is amended to read as follows:

Section 1403. ~~Any party to any cause pending in a court of record may in term time or in vacation file a written application with the clerk of the court, setting forth the grounds or facts upon which the claim is made that the~~

~~A. Upon a good-faith belief that a judge is disqualified, and request said judge so to certify, after reasonable notice to the other side, same to be presented to such judge, and upon his failure so to do within three (3) days before said cause is set for trial, application may be made to the proper tribunal for mandamus~~

requiring him so to do any party to any cause pending in a court of record may seek disqualification of the judge by first making a request to the judge in camera to disqualify himself or herself. If the request is denied, the requesting party may file a written motion for disqualification within ten (10) days from the denial setting forth the grounds upon which the request for disqualification is made. Provided, no disqualification motion shall be filed less than ten (10) days before the case is set for trial. The judge shall rule upon the disqualification motion within fifteen (15) days from the date it is filed.

B. The denial of a disqualification motion shall be reviewable by the chief judge of the county in which the cause is pending or, if the disqualification of the chief judge is sought, to the presiding judge of the administrative district, upon the filing of an application for rehearing within five (5) days from the adverse ruling. Rehearing on the disqualification motion shall be held and ruled upon within thirty (30) days from the filing of the application for rehearing.

C. Within five (5) days from an adverse ruling on rehearing, application may be made to the proper tribunal for mandamus requiring the judge to disqualify himself or herself.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____